

IN THE CIRCUIT COURT OF LAFAYETTE COUNTY, MISSISSIPPI

STATE OF MISSISSIPPI

VERSUS

CAUSE NO. LK22-358

MATTHEW REARDON

DEFENDANT

**MOTION TO REVOKE PROBATION/SENTENCE
AND HOLD DEFENDANT UNTIL HEARING ON THE SAME**

Comes now, the State of Mississippi, by and through its Assistant District Attorney Tiffany Kilpatrick, and moves this Court to revoke the probation and sentence in the above-styled and numbered cause, and hold Mr. Reardon in custody until such hearing, and in support thereof would show the following, *to wit*:

I.

Defendant Reardon pleaded guilty to AGGRAVATED STALKING, one count, on September 30, 2022. The Court sentenced Defendant to Five Years, all suspended, and as condition of his unsupervised term of Five Years probation, Defendant be banished from Lafayette County with two exceptions: that he (1) be allowed to enter and exit Lafayette County and go directly to the residence where he was then lodged until November 15, 2022, and (2) to attend court proceedings or scheduled court business for which he would provide one day notice to the Lafayette County Sheriff's Department.

II.

Defendant immediately violated the terms of his sentence on both September 30, 2022, and October 3, 2022. Undersigned Assistant District Attorney contacted Defendant's counsel and asked that they both return to the courthouse wherein Circuit Court was in term so that the Court could remind and again explain to the Defendant that he was not permitted unauthorized movement about the City of Oxford or Lafayette County. No revocation proceedings were initiated.

III.

Undersigned counsel has been notified by both law enforcement and private citizens that Defendant presented himself in the City of Oxford on Friday, October 28, 2022, and Monday,

October 31, 2022, for unauthorized and unscheduled purposes. Specifically, Mr. Reardon presented himself at the local Federal Bureau of Investigation office on Friday, October 28, 2022, and then in Shelbi's Place, a residential neighborhood, on the evening of October 31, 2022, either of which violates the terms of his probation.

Wherefore, premises considered, the State moves the Court to revoke the Defendant's probation and sentence in this case. The State requests that Defendant be held in the Lafayette County Detention Center pending a hearing on this motion at the earliest possible date, which would be Thursday, November 3, 2022, at 2:00 P.M. in the courtroom of the Lafayette County Circuit Court.

RESPECTFULLY SUBMITTED, this, the 1st day of November, 2022.



TIFFANY L. KILPATRICK
Assistant District Attorney
Third Circuit District Attorney's Office
1301 Monroe Avenue
Oxford, Mississippi 38655

LAFAYETTE COUNTY
FILED

NOV 01 2022

JEFF BUSBY
CIRCUIT CLERK

By: _____ D.C.